Data Sharing Agreement Documentation Governance
WyIT.2014

Policy Owner	Department of Enterprise Services, Data Privacy
Policy Contact	Pat Potter, Deputy Chief Data Officer
Policy Approver	Wyoming Data Governance Committee (WDGC)
Effective Date	September 12, 2025
Next Review Date	April 1, 2027
Policy Version	2026-09.1

Scope:

This policy establishes comprehensive governance requirements for all data sharing arrangements between Wyoming state agencies and external entities, and defines standard requirements for Data Sharing Agreements (DSAs) and similar documents (e.g., Information Exchange Agreements, Non-Disclosure Agreements, Memoranda of Understanding) to ensure consistency, comprehensiveness, and compliance across all state agencies.

This policy addresses the critical need for systematic governance of data sharing activities and standardized data sharing frameworks that protect state information assets while enabling appropriate inter-agency collaboration, third-party partnerships, and federal data exchanges. It provides comprehensive legal, technical, and procedural safeguards that ensure compliance with Wyoming State law, federal privacy regulations, and industry security standards

Authority
This policy is promulgated under the authority of Wyoming State Statute 9-2-2906 and its subsections, the Department of Enterprise Technology Services is required to adopt and enforce information technology standards, and promote efficient use of information technology throughout state government.

Specifically, this policy is further promulgated under the authority of the below listed Wyoming State Statute subsections.

- Implements and maintains an information technology governance program for state agencies (W.S 9-2-2906,(b), (ii));
- Establishes and enforces data security and privacy policies and standards for the state data infrastructure Establishes review criteria for the agencies information technology projects, procurements and purchases. (W.S 9-2-2906,(b), (iii)); and

Adopts information technology policies and standards and ensures agency compliance with those policies and standards (W.S. 9-2-2906,(b), (vi)).

Audience

This policy applies to all Executive Branch agencies, boards, and commissions staff (collectively referred to as "agencies"). This policy is also applicable to consultants, affiliates, third party vendors and temporary employees that use or store state data.

Definitions

Key Definitions, Acronyms, and Terms

Policy Statements:

1. **GOVERNANCE FRAMEWORK**

1.1. All data sharing arrangements between agencies and external entities, or between agencies involving sensitive information must be governed by formal written agreements meeting the requirements of this policy.
[1], [2], [3], [4]

1.2. Agencies may implement supplemental policies to augment this governing policy as needed. Agencies may create agency-specific policies that meet the outlined scope, purpose, and requirements, as stated in this policy.
[5], [2], [6]

1.3. Data sharing arrangements must comply with information classification requirements.
[4]

1.4. Prior to establishing any data sharing arrangement, agencies must conduct risk assessments that consider data classification levels, applicable privacy requirements, security implications, and compliance obligations.
[1], [5], [4], [6]

1.5. All data sharing arrangements involving personally identifiable information (PII) or other sensitive data must include mandatory consultation with the Agency Official for Privacy (AOP), ensuring privacy impact assessments are completed and privacy safeguards are implemented
[5], [2], [7]

1.6. Data sharing agreements require approval from agency heads or their designated representatives, the Office of the Attorney General, and the OCIO.
[1], [2]

1.7. Both the ETS Security Office and Data Office may suspend agreements that pose compliance risks.
[1], [5], [2]

2. REQUIRED AGREEMENT ELEMENTS

2.1. Parties and Roles

2.1.1. Identify Data Owner(s) and Data Controller(s) as applicable;

2.1.2. Identify Data Processor(s) and Data Recipient(s); and

2.1.3. Each party shall designate a Data Steward responsible for agreement oversight.
[1], [8], [9], [10], [6]

2.2. Identify all specific data sets or types of information that are included in the sharing agreement.

This could be broad (e.g., "all public safety incident reports") or narrow (e.g., "traffic citation data for Highway 25 corridor analysis").
[11], [1], [12], [10], [6]

2.3. Clearly state the period over which the data sharing will occur. This could be a one-time transfer, a specific date range, or an ongoing arrangement with regular updates.
[11], [1], [12], [6], [10]

2.4. Specify authorized locations for data storage, processing, and transmission, i.e., only within the State of Wyoming as opposed to the United States.
[1, [13], [12], [6], [9]

2.5. Clearly state the specific purposes for which the shared data can be used (e.g., "traffic safety analysis for Highway 25 improvement project" rather than "transportation planning").

This helps prevent data from being used for purposes not originally intended or agreed upon.
[1], [12], [9], [6]

2.6. Clearly state which group/division/section within the receiving organization(s) will have access to the shared data.
[1], [6], [10]

2.7. Clearly state what data processing or analysis types are permitted under the agreement (e.g., statistical analysis, trend identification, reporting) and explicitly prohibit unauthorized uses such as re-identification or profiling.
[1], [12], [9], [6]

2.8. Specify whether the receiving party is prohibited from sharing the data further or using it beyond the stated purpose.

If onward sharing or expanded use is permitted, define the specific conditions, approval requirements, and compliance obligations.
[1], [8], [9], [12], [10]

2.9. All data sharing agreements must specify:

2.9.1. Data classification levels;

2.9.2. Specific data types requiring special handling under federal law (PII, HIPAA, FERPA, etc.);

2.9.3. Data subject to exemptions under W.S. §16-4-203 of the Wyoming Public Records Act; and

2.9.4. Any data requiring enhanced protections, for example honoring donor agreements, or other legal restrictions.
[1], [8], [4], [6], [12]

2.10. All data sharing agreements must specify secure transfer methods and approved protocols that meet or exceed the standards established in WyIT 2005, Information Residency and Transportation, including:

2.10.1. Encryption requirements for data in transit;

2.10.2. Prohibited transfer methods (unencrypted email, FTP, etc.); and

2.10.3. Alternative transfer procedures for system failures.
[1], [8], [13], [15], [10]

2.11. All data sharing agreements must specify security safeguards appropriate to the data classification level, including storage security, access controls, physical security, network security, key management, access monitoring, and access reviews.
[1], [8], [15], [16], [8], [12], [10]

2.12. All data sharing agreements must specify data handling requirements, including retention obligations, disposal requirements, return procedures, and verification requirements for disposal or return completion.
[1], [8], [17], [12], [6], [10]

2.13. All data sharing agreements must include incident response procedures, including notification timelines, coordination procedures, and recovery responsibilities.
[1], [8], [18], [19], [20], [12], [6], [10]

2.14. If either party requires auditing and monitoring provisions, agreements must specify audit scope, frequency, responsible parties, and compliance verification procedures.
[1], [8], [12], [6], [10]

2.15. Termination conditions and data handling post-termination. Specify termination triggers, notification requirements, data return or destruction procedures, verification of completion, and timeline for post-termination data handling.
[1], [8], [17], [6], [10]

3. LIFECYCLE MANAGEMENT

3.1. Agencies must maintain a comprehensive inventory of all data sharing agreements. This inventory shall, at at minimum, include the:

3.1.1. Name of each agreement;

3.1.2. Inclusive dates of each agreement;

3.1.3. Program(s) and / or system(s) that the agreement relates to;

3.1.4. Date of the last review of each agreement;

3.1.5. Destruction requirements of each agreement; and

3.1.6. Any relevant notes about each agreement.
[1], [6]

3.2. Agreements shall be reviewed at least once every 2 years, or at a frequency stated in the agreement, not to exceed 2 years. Agreement modifications must follow the same approval processes as initial agreements.
[1], [5], [6]

3.3. The agency shall review agreements promptly in the event of any significant changes, such as:

3.3.1. Changes in agency leadership (e.g., appointment of a new director);

3.3.2. Changes in data being shared;

3.3.3. When the date ranges are no longer valid;

3.3.4. Statutory or regulatory updates that may impact the agreement; and/or

3.3.5. Changes in operational circumstances, such as:

3.3.5.1. New, rewritten, or merged system

3.3.5.2. Change in hosting environment, etc
[1], [5]

3.4. Agencies shall terminate agreements in accordance with the termination provisions contained within each agreement.

Legacy agreements established before this policy's effective date require supplemental termination procedures including:

3.4.1. Secure data destruction or return;

3.4.2. Documentation of compliance with destruction requirements; and

3.4.3. Notification to relevant stakeholders.

Agencies must ensure proper closure documentation for audit purposes.
[1], [5], [17]

4. SECTION FOUR - IMPLEMENTATION AND COMPLIANCE

4.1. Data Sharing Agreement Verification Process - Agency Responsibilities

4.1.1. Submit documentation to the ETS Data Office, unless the CDO or designee is part of the governance;

4.1.2. Demonstrate compliance through structure; and

4.1.3. Maintain verification records.
[1], [6], [10]

4.2. Data Sharing Agreement Verification Process - ETS Data Office Responsibilities

4.2.1. Review submissions for completeness and compliance with all requirements specified in Sections 4-7 of this policy;

4.2.2. Provide written acknowledgment specifying approval status, any required corrections, and guidance for addressing identified deficiencies; and

4.2.3. Monitor ongoing compliance through coordination with agencies and established oversight procedures.
[1], [6], [10]

4.3. Data Sharing Agreement Compliance Monitoring and Enforcement

4.3.1. Agencies shall implement monitoring mechanisms to ensure ongoing compliance with data sharing agreement terms, including: periodic assessments of data use, security controls, and privacy protections.

Non-compliance issues must be addressed through corrective action plans developed in coordination with the ETS Data Office.
[1], [5], [6]

4.3.2. Suspected violations of data sharing agreements or associated data breaches must be reported upon discovery through established incident response procedures, with coordination between agencies, the Agency Official for Privacy (AOP), and the ETS Data Office as appropriate.
[1], [2], [18], [7], [20]

4.3.3. The Chief Data Officer reserves the authority to request and review agency data sharing agreement inventories through the ETS Data Office to ensure compliance with this policy and statewide data governance standards.
[1], [5]

Applicable State Policies, Federal, State or Industry Rules, Laws, and/or Regulations

1. National Institute of Standards and Technology (NIST) SP 800-53, Rev 5
2. Wyoming Statute .S. 9-21-101
3. Wyoming Statute § 16-4-203, Public Records Act
4. WyIT.2001, Information Classification
5. National Institute of Standards and Technology (NIST) Privacy Framework
6. ISO/IEC 27001
7. WyIT.2006, Agency Official for Privacy (AOP)
8. FBI Criminal Justice Information Services (CJIS) Security Policy
9. EU-U.S. Data Privacy Framework (DPF), Accountability for Onward Transfer
10. American Institute of Certified Public Accountants (AICPA), System and Organization Controls 2 (SOC2)
11. National Institute of Standards and Technology (NIST) SP 800-47, Rev 1
12. General Data Protection Regulation (GDPR), Art. 30 (1)(b)
13. WyIT.2005, Information Residency and Transportation
14. Data Privacy Framework (DPF) Principles
15. WyIT.3007, System and Communication Protection
16. WyIT.3013, Physical and Environmental Protection
17. WyIT.2013, Electronic Data Destruction and Sanitization

18. WyIT.2004, Information Breach
19. WyIT.3009, Computer Security Threat Response
20. WyIT.3010, Incident Response
21. WyIT.2001-S1, Data Owner Standard
22. WyIT.2001-S2, Data Steward Standard
23. WyIT.2001-S3, Data Custodian Standard
24. WyIT.2001-S4, Data Domain Standard
25. WyIT.2001-G1, Information Classification Guide
26. WyIT.2001-G2, Information Classification Procedures Guide
27. WyIT.2004-GL, Information Breach Response Guide

Compliance & Exceptions:

Compliance

Employees who violate this policy may be subject to appropriate disciplinary action up to and including discharge as well as both civil and criminal penalties. Non-employees, including, without limitation, contractors, may be subject to termination of contractual agreements, denial of access to IT resources, and other actions as well as both civil and criminal penalties.

Exceptions

Requests for exceptions to this policy shall be reviewed by the Chief Information Security Officer (CISO) and the Chief Information Officer (CIO). Departments requesting exceptions shall provide such requests to the CIO in accordance with WyIT.3002 Policy Exception Request.

The request should specifically state the scope of the exception along with justification for granting the exception, the potential impact or risk attendant upon granting the exception, risk mitigation measures to be undertaken by the IT Department, initiatives, actions and a time-frame for achieving the minimum compliance level with the policies set forth herein. The CIO shall review such requests; confer with the requesting department.

Any exception to established policy shall be defined and tracked as a risk to the state and established mitigating controls monitored by the agency.

Review/Approval:

Date Issued/Review Date

This policy shall be reviewed at least annually and updated / reviewed / approved as defined in the Office of Chief Information Officer (OCIO) Policy lifecycle.

The review and update process shall be coordinated by Governance, Risk and Compliance (GRC), completed by the policy owner and approved through the OCIO policy review workflow.

To obtain a signed copy of this document, contact Enterprise Technology Services Governance, Risk and Compliance (ets-ocio-grc@wyo.gov).

Jeffrey Clines
Officer Name

Chief Information Officer
Officer Title

_____
Officer's Signature

_____
Date

Revision History

The current version of this policy, as identified in the Revision History below, supersedes all previous documents listed below.

Version	Change	Author(s)	Date of Change
2026.9.1	ETS Director Signature	GRC	September 2026
2025-09.1	WyIT 2014, Data Sharing Agreement Documentation Governance, Policy Merge	Pat Potter, Deputy CDO	September 2025
UKN	WyIT 2012, Data Sharing Agreement Elements, Originally Published	Pat Potter, Deputy CDO	February 2025
UKN	WyIT 2010, Agency Data Sharing Review Frequency, Originally Published	Pat Potter, Deputy CDO	June 2024